DATED 5th November **1997**

THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND

- and -

LONDON ELECTRICITY plc

COUNTERPART
L E A S E

relating to

Electricity Sub-station forming part of
Bank of England Sports Ground Roehampton

DIBB
LUPTON
ALSOP

THIS LEASE is made by way of deed the 5th November 1997

BETWEEN:

(1) **THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND** (the "Landlord" which expression where the context so admits shall include the Landlord's successors and assigns) and

(2) **LONDON ELECTRICITY plc** whose registered office is situate at Templar House 81-87 High Holborn London WC1V 6NU (Company Number 2366852) (the "Tenant")

WHEREAS the Landlord has agreed to construct and make available to the Tenant a compound for an electrical transformer to be provided by and installed by the Tenant known as the "Sub-station" being at The Bank of England Sports Ground Roehampton (the "Landlord's Premises")

NOW THIS DEED WITNESSETH as follows:

1. In consideration of the rent hereinafter reserved and of the covenants on the part of the Tenant hereinafter contained the Landlord hereby demises unto the Tenant the Sub-station which is delineated on plan attached hereto (the "Plan") and thereon edged red (the "demised premises") TOGETHER with the rights for the Tenant and its contractors or agents and their respective servants and workmen at all times during the term hereby created (the "Term") to

   1.1 install and during the continuance of the Term to maintain on the demised premises such transforming and other plant and apparatus as may from time to time be requisite for the purposes of the Tenant's undertaking

   1.2 to take in and expel air from and over the land adjoining the ventilators indicated on the Plan by the colour blue

   1.3 lay and during the continuance of the Term to use and maintain through or under that part of the Landlord's Premises delineated on the Plan and thereon coloured green and edged yellow such electric lines ducts

and other apparatus (the "Cables") as may in the reasonable opinion of the Tenant from time to time be requisite for connecting the said transforming and other plant and apparatus with the Tenant's distributing mains in the adjacent public streets or elsewhere

1.4 enter the said Landlord's Premises over the route shown edged red and yellow on the Plan and do thereon such acts and things as may be reasonably necessary for the purpose of installing laying inspecting maintaining or removing any such plant electric lines or other apparatus as aforesaid TO HOLD the same unto the Tenant for the term of 99 YEARS from the 29th day of November 1997 PAYING therefor the yearly rent of five pence (if demanded) such rent if demanded to be payable without any deduction on the first day in each year

PROVIDED ALWAYS that any person exercising the rights set out in this clause 1 shall remain subject to the reasonable security requirements of the Landlord

2. The Tenant hereby covenants with the Landlord as follows:

2.1 To pay the said yearly rent (if demanded) at the times and in manner aforesaid

2.2 To keep the Landlord indemnified from liability for any rates and taxes which may now or hereafter be separately assessed charged or imposed upon the demised premises or the owner or occupier in respect thereof Provided that the Landlord shall have given to the Tenant notice of the receipt of any demand for rates in respect of the demised premises and of any proposal for the separate assessment thereof whether made by the Landlord or any other person or persons

2.3 To permit the Landlord and its agents surveyors and workpeople to enter upon the demised premises at all reasonable times but in company with a servant of the Tenant for the purpose of viewing the state of the

demised premises And forthwith to make good any defects within a reasonable period thereafter found upon the demised premises of which notice shall be given by or on behalf of the Landlord

2.4 To permit the Landlord with workmen and others to enter upon the demised premises in company with a servant of the Tenant for the purpose of carrying out structural repairs to the demised premises or any part of the Landlord's Premises of which they form part

2.5 Not to use the demised premises otherwise than as a transformer chamber for or in connection with the transformation and distribution of electrical energy

2.6 Not at any time during the Term to assign underlet charge sublet part with or share possession or occupation of the whole or any part of the demised premises

2.7 Not to cause or permit to be caused any nuisance by noise fumes or otherwise to the Landlord or other occupiers of the Landlord's Premises by the installation of any plant electric lines or other apparatus in the Landlord's Premises or the user of any plant electric lines or other apparatus from time to time so installed or laid

2.8 At all times during the Term to keep the interior of the demised premises in good decorative repair and condition provided that the Tenant's liability hereunder shall not extend to any repairs of a structural nature

2.9 To make good all damage caused to the demised premises or to the Landlord's Premises to the reasonable satisfaction of the Landlord by the exercise of any of the rights hereby granted to the Tenant

2.10 To pay and make good to the Landlord and keep the Landlord fully and effectually indemnified against all loss costs claims demands liability damage actions and expenses whatsoever incurred or sustained by the Landlord as a consequence of or in connection with any breach non-performance or non-observance of any of the covenants and conditions on the part of the Tenant contained or implied by this Lease or the use of the Landlord's Premises by

the Tenant or any permitted occupier or their respective servants agents licensees or visitors or the exercise of any rights granted by this Lease or the existence or condition of any article in or about the demised premises including all reasonable costs and expenses which may be incurred by the Landlord in connection with any steps which the Landlord may (at its absolute discretion but without being in any way obliged so to do) take to remedy any breach of covenant or condition by the Tenant implied by this Lease and such indemnity shall be without prejudice to any rights or remedies of the Landlord under this Lease in respect of any breach non-performance or non-observance of any covenant or condition

3. The Landlord hereby covenants with the tenant as follows:

3.1 Not to interfere with or cause or permit any interference with any such plant electric lines or other apparatus as aforesaid without the approval of the Tenant such approval not to be unreasonably withheld or delayed

3.2 That the Tenant performing and observing the covenants on its part herein contained may peaceably and quietly hold and enjoy the demised premises without any interruption by the Landlord or any person claiming by through under or in trust for it

3.3 If at any time after the date hereof the Landlord desires to develop or build upon any part of the demised premises or any part of the land coloured green on the plan beneath which the Cables are laid and the presence of the Sub-station or the Cables prevents or interferes with such development and provided that the Landlord shall give to the Tenant not less than six calendar months previous notice in writing of such its desire then:

3.3.1 in the event of such development or building operations being actually commenced the Tenant will with all reasonable despatch at the cost of the Landlord move the electricity sub-station plant apparatus and equipment installed upon the

demised premises to a new site and will divert the Cables to an alternative route reasonably suitable to the Tenant's reasonable requirements to be provided by the Landlord or do such work as may be reasonably necessary to enable such development or building operations to be carried out by the Landlord whereupon the provisions of this Lease shall apply to the new sub-station and to the Cables so diverted or re-routed as if the same had been originally so laid and if the land edged red and coloured green on the plan had been omitted and there had been land edged red and coloured green on the plan indicating the position of the sub-station site as relocated and the Cables as diverted except that the Tenant may require the new sub-station site and the agreed new diverted cable route to be evidenced by supplemental deed in such form as it may reasonably require and

3.3.2 the Landlord shall within ten working days of demand pay to the Tenant all costs and expenses reasonably incurred by the Tenant (including without prejudice to the generality of the foregoing) any construction or engineering costs and any legal costs including stamp duty and land registry fees and value added tax attributable to any such costs (in connection with or consequent upon such removal and relocation and any supplemental deed as aforesaid)

IT IS HEREBY AGREED by and between the parties hereto that all such plant electric lines or other apparatus as aforesaid shall be and remain the property of the Tenant who may remove the same at any time subject to making good any damage to the Landlord's Premises to the reasonable satisfaction of the Landlord

PROVIDED ALWAYS AND IT IS HEREBY AGREED that if the rent hereby reserved or any part thereof (having been demanded) shall remain unpaid for 21 days after becoming payable or if any covenants on the part of the Tenant herein contained shall not be performed or observed then and in any such case it shall be lawful for the Landlord at any time thereafter to re-enter upon the demised premises or any part thereof in the name of the whole and thereupon this demise shall absolutely determine but without prejudice to any right of action of either party hereto in respect of any antecedent breach of any covenant by the other party herein contained or to the right of the Tenant to enter the demised premises and to remove therefrom all such plant cables and other apparatus as aforesaid and other property of the Tenant

We hereby certify that there is no Agreement for Lease to which this Lease gives effect

It is hereby certified that the transaction hereby effected does not form part of a larger transaction or of a series of transactions the amount or value or the aggregate amount or value of which exceeds the sum of £60,000 (Sixty Thousand Pounds)

The Landlord hereby agrees to place its Land Certificate on deposit to meet the application which the Tenant hereby agrees to make for the registration of this Lease and to notify the Tenant of the deposit number when received.

WITNESS of which this Lease has been executed as a deed and has been delivered on the date which appears first on page 1

THE COMMON SEAL of **LONDON ELECTRICITY plc** is hereunto affixed and is authenticated by:)

Authorised Signatory

009020

BANK OF ENGLAND
SPORTS GROUND
(08319)

Bank of Eng

Record Office

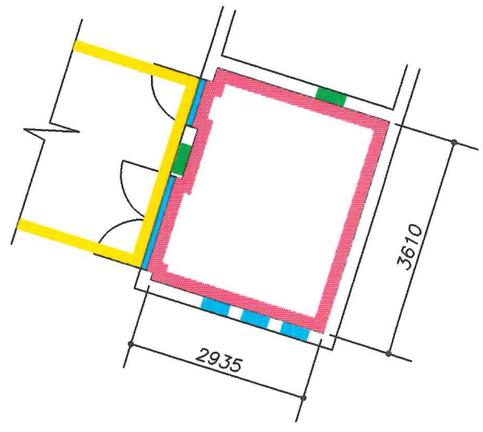
2

1

BANK

ROEHAMPTON GATE

LANE



SITE PLAN Scale 1:100

Title

BANK LANE, BANK OF ENGLAND SPORTS GROUND. SW.15.

Proposed Establishment of 800kVA Transformer Chamber.

Drawn by	G.Lewis
Date	14/05/97
Approved by	B.Holland
Date	22/05/97
Scale	As above
Project number	ST 101598

ONDON ELECTRICITY plc

Rev.	6
Rev.	3

LONDON ELECTRICITY
CONNECTIONS BUSINESS UNIT

Connections
Bengeworth Road
London
SE5 9AJ
Tel 0171 733 5611

Drawing Number

CBU 1481L

LANE

ROEHAMPTON GATE

BANK

1

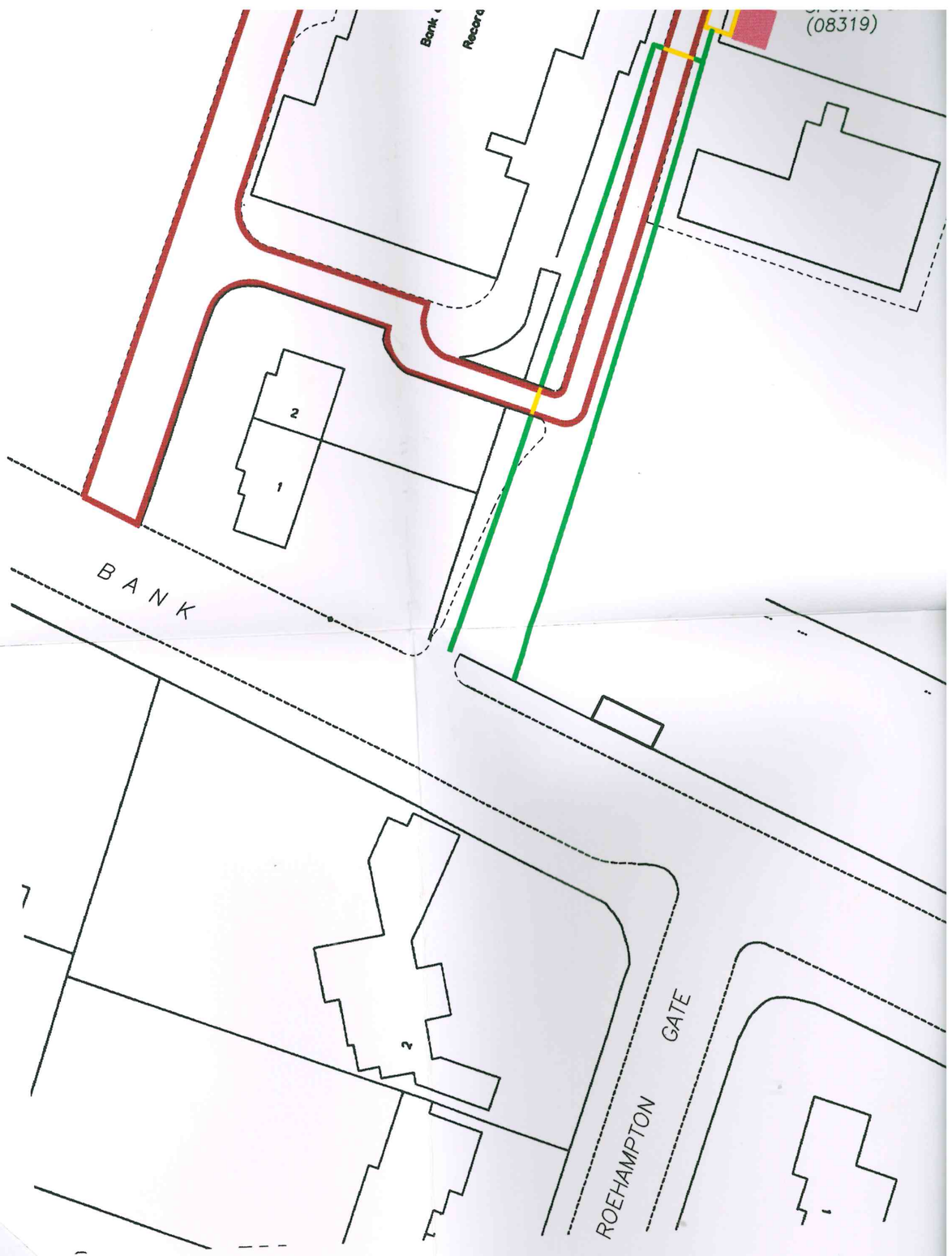
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2

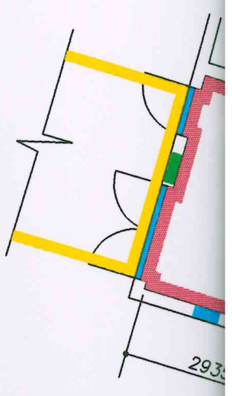
Bank of England
Record Office

BANK LANE
BANK OF ENGLAND
SPORTS GROUND
(08319)

Sports Hall and
Swimming Pool



LOCATION PLAN Scale 1:500



SITE PLAN

REFERENCE

PROPOSED TRANSFORMER CHAMBER

ACCESS FOR MEN AND MATERIALS

ACCESS FOR MEN, MATERIALS AND CABLES

ACCESS FOR CABLES

VENTILATION

Title

BANK LANE, BANK OF ENGLAND SPORTS GROUN

Proposed Establishment of 800kVA Transformer

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Rev. 4	Rev. 5	Rev. 6
Rev. 1	Rev. 2	Rev. 3

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CONNECTIONS BUSINESS UNIT
Connections
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Tel 0171 733 5611

Drawing Number

CBU 148

LANE

ROEHAMPTON GATE

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Swimming Pool